

M/s Baba Cold Storage v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 46751 of 2013 · **Writ dismissed following companion order on additional security**

HEADNOTE

A consumer's writ against additional security demanded under paragraph 4.20 of the U.P. Electricity Supply Code, 2005 was connected with the Vehina Steels batch and, without prejudice, the licensee was restrained from demanding additional security until further orders. A later Division Bench dismissed the petition, directing that reasons be read with the order of the same date in Writ-C No. 30898 of 2016.

FACTUAL SUMMARY

M/s Baba Cold Storage petitioned the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. On 4 September 2013 the Court connected the writ with Vehina Steels and similar pending challenges, allowed time for a counter affidavit, and restrained the demand until further orders. On 21 March 2017 a later Division Bench dismissed the writ, adopting the order of that date in Writ-C No. 30898 of 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging demand of additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, the Court directing that orders be seen in the order of the same date in Writ-C No. 30898 of 2016. Earlier, following the interim order in Writ Petition No. 30582 of 2009 (Vehina Steels), the respondents were restrained from demanding additional security until further orders, without prejudice to the parties' rights. ¶ 1-2